KARNATAKA

A COSTLY PREDICAMENT

By Ajay Sukumaran

The Bengaluru Palace, an iconic Tudor-style castle located in the heart of India's tech capital, has been the subject of a long-drawn legal battle. In 1996, the Karnataka government had enacted a law to take over the entire property—spread over 472 acres, dotted with trees and open vegetation—from the heirs of the Maharaja of Mysore. While the Bangalore Palace Acquisition and Transfer (BPAT) Act, 1996, was upheld by the Karnataka High Court in 1997, following an unsuccessful challenge by the erstwhile royal family, their subsequent appeal is still pending in the Supreme Court. However, even as this protracted tussle continues, the Siddaramaiah-led Congress government in Karnataka has now landed in a predicament—and a costly one at that.

In 2009, Bengaluru's civic authority had come up with a proposal to utilise 15.97 acres of the palace grounds to widen a two-kilometre stretch of two abutting roads—Bellary Road and Jayamahal Road—which led to the Kempegowda International Airport, newly opened at the time. The Supreme Court hearings in this regard culminated in a November 2014 ruling that allowed the road-widening project, subject to the condition that the appellants be given Transferable Development Rights (TDR) for the land parcel acquired.

THE GOVT'S 2009 MOVE TO ACQUIRE 15.97 ACRES OF THE BENGALURU PALACE GROUNDS FOR ROAD WIDENING COULD NOW COST RS 3,014 CRORE

The TDR scheme is a mechanism under which authorities compensate landowners whose property is being acquired for public purposes by awarding them additional floor area via a development rights certificate (DRC) instead of paying cash. The holder can either make use of the additional built-up area



REGAL RAMPARTS The Bengaluru Palace. The entire property is spread over 472 acres

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